

****30.05.2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed an investigation in April 2024 at the operator Corint Logistic SRL and found violations of the provisions of art. 5 para. (1) lit. a) and b), art. 6 para. (1), art. 12, art. 15 para. (1), art. 17, and art. 21 para. (3) of Regulation (EU) 2016/679.

As such, the operator was sanctioned contraventional:

1. with a fine of 4,976.3 lei (equivalent to the amount of 1,000 EURO), for violating the provisions of art. 17 and art. 21 para. (3) of Regulation (EU) 2016/679;
2. with a fine of 4,976.3 lei (equivalent to the amount of 1,000 EURO), for violating the provisions of art. 5 para. (1) lit. a) and b) of Regulation (EU) 2016/679;
3. with a warning, for violating the provisions of art. 15 para. (3) of Regulation (EU) 2016/679 in conjunction with art. 12 of Regulation (EU) 2016/679;

The investigation was initiated following a complaint submitted by a data subject who reported a possible violation of the provisions of Regulation (EU) no. 2016/679. Thus, a client of the operator complained that he received commercial SMS messages from Corint Logistic SRL on his phone number, despite having exercised his right to erasure and having received confirmation that his personal data had been deleted.

During the investigation, it was found that the operator did not take into account the requests for erasure/opposition submitted by its client, so the complainant continued to receive other commercial SMS messages from Corint Logistic SRL, thus violating the provisions of art. 17 and 21 para. (3) of Regulation (EU) 679/2016.

Additionally, during the investigation, it was found that the operator did not provide evidence of the existence of the data subject's consent for the transmission of commercial messages to the phone, thus violating the provisions of art. 5 para. (1) lit. a) and b) and art. 6 para. (1) of Regulation (EU) 679/2016.

At the same time, it was revealed during the investigation that the operator did not communicate a response to the client regarding other requests through which he exercised his rights of access and erasure, submitted via email, although it had this obligation, thus violating the provisions of art. 15 para. (1) of Regulation (EU) 679/2016, in relation to art. 12 of the same regulation.

At the same time, the operator was also subjected to the following corrective measures:

- taking appropriate measures to ensure compliance with the provisions of Regulation (EU) 679/2016, so that in the future, the personal data of data subjects is processed for direct marketing purposes concerning the use of electronic communication services (email, phone), with the express and prior consent of these individuals, including the adoption of procedures in this regard;
- adopting appropriate and efficient internal procedures for the protection of personal data regarding the resolution of requests submitted by data subjects, under Regulation (EU) 679/2016, ensuring compliance in all cases with the applicable provisions regarding the analysis and prompt resolution of these requests, so that the operator ensures that it effectively responds to requests exercising the rights of data subjects, as well as regular training of the operator's staff.

****Legal and Communication Department****

****A.N.S.P.D.C.P.****